

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

TERRELL SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ERIC
GUTIERREZ, Tax No. 954903, SERGEANT ANTHONY
NEVANDRO, Tax No. 941091, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present),

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates KINGS
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 16, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER ERIC GUTIERREZ, Tax No. 954903, 70th Precinct, 154 Lawrence
Ave, Brooklyn, NY 11230
SERGEANT ANTHONY NEVANDRO, Tax No. 941091, 70th Precinct, 154 Lawrence
Ave, Brooklyn, NY 11230

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff TERRELL SMITH, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 4, 2019, at approximately 5:00 a.m., plaintiff was lawfully present inside of his apartment located at 630 Ocean Avenue, Apt. 9H, Brooklyn, New York, when the defendant police officers unlawfully entered the apartment and searched the apartment and the individuals present without probable cause or any legal justification. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to believe plaintiff committed a crime or violated the law in any manner. Thereafter, plaintiff was unlawfully transported to the 70th precinct. Plaintiff's arrest was voided and he was released from the 70th precinct on February 4, 2019 because there was no probable cause or legal justification to arrest him. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, and imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff TERRELL SMITH is and was at all times relevant herein a resident of the State of New York.

3. POLICE OFFICER ERIC GUTIERREZ, Tax No. 954903, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER ERIC GUTIERREZ, Tax No. 954903, is and was at all times relevant herein, assigned to 70th precinct.

5. POLICE OFFICER ERIC GUTIERREZ, Tax No. 954903, is being sued in his individual and official capacity.

6. SERGEANT ANTHONY NEVANDRO, Tax No. 941091 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ANTHONY NEVANDRO, Tax No. 941091 was at all times relevant herein, assigned to the 70th precinct.

8. SERGEANT ANTHONY NEVANDRO, Tax No. 941091 is being sued in his individual and official capacity

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in his individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police

force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

16. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about March 8, 2019.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

19. Pursuant to NYS Executive Orders 202.8, 202.14, 202.28, 202.38, 202.48, 202.55, and 202.60 duly executed by NYS Governor Andrew Cuomo related to the COVID-19 health crisis, all claims filed herein are deemed timely filed.

STATEMENT OF FACTS

20. On February 4, 2019, at approximately 5:00 a.m., plaintiff was lawfully inside of his apartment located at 630 Ocean Avenue, Apt. 9H, Brooklyn, New York when the defendant police officers unlawfully entered and unlawfully searched the apartment and the individuals present.

21. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location inside of the apartment that was in plaintiff's possession, custody, or control.

22. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

23. Nevertheless, plaintiff was unlawfully handcuffed and arrested and transported against his will to the 70th Precinct where he was searched, photographed, fingerprinted, and placed in a holding cell.

24. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

25. On February 4, 2019, after spending several hours in custody at the 70th precinct, plaintiff's arrest was voided and he was released from custody without any charges because there was no legal justification or probable cause to arrest him.

26. As a result of being the arrest, plaintiff missed two days of work.

27. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, and false arrest of plaintiff.

28. The unlawful search, false arrest/imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

31. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

34. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

35. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

38. Defendants lacked probable cause to search plaintiff.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Terrell Smith. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

43. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Failure to Intervene

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

49. Defendants failed to intervene to prevent the unlawful conduct described herein.

50. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

52. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Terrell Smith demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 16, 2020

By: _____/s/

STUART E. JACOBS
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER ERIC GUTIERREZ, Tax No. 954903, 70th Precinct, 154 Lawrence Ave, Brooklyn, NY 11230
SERGEANT ANTHONY NEVANDRO, Tax No. 941091, 70th Precinct, 154 Lawrence Ave, Brooklyn, NY 11230

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 16, 2020

/s/
STUART E. JACOBS